

1. Purpose

This policy establishes the rules and procedures governing employee resignation and termination of employment, ensuring compliance with the **Labor Code of the Philippines**, due process requirements, and company policies.

2. Voluntary Resignation

Employees may voluntarily resign from employment by submitting a **formal written resignation letter** to their immediate supervisor and the Human Resources Department.

2.1 Notice Period

Employees are required to render at least **thirty (30) calendar days' written notice** prior to their intended last working day.

This notice period is necessary to ensure:

- Proper transition of duties
- Knowledge transfer
- Continuity of operations

Failure to comply with the required notice period may result in:

- Liquidated damages equivalent to one (1) month salary, or
- Deduction from final pay, subject to applicable laws and existing agreements

2.2 Waiver of Notice Period

The Company, based on operational needs or management approval may, at its discretion:

- Accept a shorter notice period; or
- Waive the 30-day notice requirement

2.3 Clearance and Final Pay

Resigning employees must complete the company's clearance process, which includes:

- Return of company-issued equipment and assets
- Settlement of accountabilities
- Completion of required exit documents

Final pay shall be released in accordance with DOLE regulations and company policy.

3. Termination of Employment

The Company may terminate employment based on just causes or authorized causes, as provided under the Labor Code of the Philippines.

3.1 Just Causes (Employee-Related)

Termination may be imposed for causes including, but not limited to:

- Serious misconduct
- Willful disobedience of lawful orders
- Gross and habitual neglect of duties
- Fraud or willful breach of trust
- Commission of a crime against the employer or co-employees
- Other violations under the Code of Conduct and Discipline (COCD)

3.2 Authorized Causes (Business-Related)

Termination may also occur due to legitimate business reasons, including:

- Redundancy
- Retrenchment to prevent losses
- Closure or cessation of business operations
- Installation of labor-saving devices

Employees terminated due to authorized causes shall receive **separation pay**, as required by law.

3.3 Termination Due to Failure to Qualify (Probationary Employees)

Probationary employees may be terminated for:

- Failure to meet reasonable performance standards made known at the time of engagement

This shall be considered a valid termination consistent with company policy and applicable law.

4. Due Process Requirement

The Company shall observe **due process** in all cases of termination.

4.1 For Just Cause Termination (Twin Notice Rule)

The following process shall be strictly observed:

1. **First Notice (Notice to Explain / NTE)**
 - Specifies the alleged violation
 - Provides the employee at least **five (5) calendar days** to submit a written explanation
2. **Administrative Hearing or Conference**
 - Employee is given the opportunity to be heard
 - May be conducted when necessary
3. **Second Notice (Notice of Decision)**
 - Communicates the final decision
 - Indicates the grounds and effectivity of termination

4.2 For Authorized Cause Termination

The Company shall:

- Provide written notice to the employee and DOLE at least thirty (30) days prior to effectivity
- Pay applicable separation benefits

5. Exit and Clearance Process

All employees separated from employment, whether through resignation or termination, are required to complete the company's exit clearance process.

This includes:

- Return of company property (e.g., ID, equipment, system access)
- Completion of clearance from concerned departments
- Exit interview (when applicable)

Failure to complete clearance may result in delays in the release of final pay, subject to applicable laws.

6. Final Pay and Employment Documents

Final pay shall include, as applicable:

- Unpaid salary
- Pro-rated 13th month pay
- Unused leave credits (if convertible)
- Separation pay (if applicable)
- Less authorized deductions

Final pay shall be released within the period prescribed by DOLE regulations.

Employees may also request:

- Certificate of Employment (COE)
- BIR Form 2316
- Other relevant employment documents

7. Client and Operational Considerations

In a Business Process Outsourcing (BPO) environment, termination or separation may also arise from:

- Client-driven decisions (e.g., account pull-out, non-endorsement)
- Program closure or restructuring
- Performance standards required by clients

The Company reserves the right to manage employment based on operational and client requirements, subject to applicable labor laws.

8. Non-Compliance and Abandonment

Failure to report for work without valid reason and without proper notice may be treated as abandonment of work, subject to due process.

The Company shall:

- Issue notices to the employee's last known address; and
- Provide opportunity to explain prior to termination

RESIGNATION & TERMINATION

POLICY REVIEW

This policy will continue to be in force unless superseded by a revised policy. The company reserves the right to amend, abrogate, modify, rescind/ reinstate the entire policy or any part of it at any time.

DOCUMENT HISTORY

Version	Date	Author (function)	Reviewed by	Approved by	Nature of changes
1.0	March 18, 2026	Dolley Campugan, HR Generalist Apple Mag- usara, HR Generalist	Rhea Alao, Finance & Accounting Director Christi Ann Sanchez, Talent Acquisition Manager Mark Valencia, Site Director Marc Louise Castanares, Site Manager	Giovanni Yap, Executive Director Anthony Aragon, HR Director	First Integrated issue